What happens if I need more or less water than I apply for now?

If you need to increase the amount of water, you will need a new license. If you need less water than indicated in the application, you can consider partial abandonment.

For more information, see here: https://www2.gov.bc.ca/gov/content/environment/air-land-water/water/water-licensing-rights/water-licences-approvals/amend-or-abandon-a-water-licence

Rentals — local providers

5 (1)Subject to subsection (4), the rental payable for a rental period in relation to irrigation purposes and waterworks purposes, under licences held by a local provider, is the sum of the following:

(a)for the use of water for irrigation purposes, the greater of the following:

(i)the minimum annual rental set out in column 2 of Table 1 of Schedule 2 for an irrigation purpose;

(ii)the amount determined by multiplying the quantity of water reported under subsection (2), as used under the licence for irrigation purposes in the previous rental period, by the rate set out in column 3 of Table 1 of Schedule 2 for an irrigation purpose;

(b)for the use of water for waterworks purposes, the greater of the following:

(i)the minimum annual rental set out in column 2 of Table 1 of Schedule 2 for a waterworks purpose;

(ii)the amount determined by multiplying the quantity of water reported under subsection (2), as used under the licence for waterworks purposes in the previous rental period, by the rate set out in column 3 of Table 1 of Schedule 2 for a waterworks purpose.

(2)For the purpose of determining the rental payable under subsection (1) (a) and (b), a local provider must complete and submit to the comptroller, in accordance with the comptroller's directions, a report setting out the quantity of water, either as metered or determined in accordance with subsection (3), used in the previous rental period for irrigation purposes and waterworks purposes.

(3)If a report required under subsection (2) has not been received by the comptroller by the date directed by the comptroller for a rental period, or the comptroller considers that a report under that subsection is not accurate, the comptroller may determine, for the purposes of subsection (1) (a) and (b), the quantity of water used for irrigation purposes or waterworks purposes in the previous rental period based on,

(a)for irrigation purposes, the quantity of water, applied per hectare for irrigation purposes, the comptroller considers reflects the average amount for the climatic area, and

(b)for waterworks purposes, rates of consumption per person served or per connection the comptroller considers reflects the average consumption for the climatic area.

(4)The rental payable for the calendar year in which a new licence is issued to a local provider is the sum of the following:

(a)for the use of water for an irrigation purpose, the greater of the following:

(i)the minimum annual rental set out in column 2 of Table 1 of Schedule 2 for an irrigation purpose prorated for the number of days remaining in the calendar year, including the date on which the licence is issued;

(ii)the amount determined by multiplying the quantity of water the comptroller estimates in accordance with subsection (3) (a) will be used under the licence for irrigation purposes for the balance of the rental period, including the date on which the licence is issued, by the rate set out in column 3 of Table 1 of Schedule 2 for an irrigation purpose;

(b)for the use of water for a waterworks purpose, the greater of the following:

(i)the minimum annual rental set out in column 2 of Table 1 of Schedule 2 for waterworks purposes prorated for the number of days remaining in the calendar year, including the date on which the licence is issued;

(ii)the amount determined by multiplying the quantity of water the comptroller estimates in accordance with subsection (3) (b) will be used under the licence for waterworks purposes for the balance of the rental period, including the date on which the licence is issued, by the rate set out in column 3 of Table 1 of Schedule 2 for waterworks purpose.

What do I do if my number of livestock change annually? Will the annual fees change?

We aren't licencing the number of animals but the volume of water the animals require. You should apply for the volume that will support your maximum number of animals and identify within your application that the number of animals may vary by year but to account for this you have applied for the water to support them all.

How specific should I be about works?

Be specific enough that a reviewer can understand what you are proposing, where it will occur, and how it will be carried out.

For example:

Bad: “Install water system improvements.”

Better: “Install one screened intake, approximately 30 m of buried pipe, and a pump connection to supply irrigation water from the creek to the field.

What if I don’t know what works I’ll be using or where these works will be located?

If you do not yet know what works are proposed or where they will be located, you may not have enough information to submit a complete application. The application should describe the proposed works and location with enough detail for review. If those details are still uncertain, it is usually better to finalize the project scope first and then apply.

Is it necessary to have what the source flows into?

iMap - Freshwater Atlas (FWA) layer has a stream direction layer that is useful for determining where the source flows to.

You can find more information about the flow in the Freshwater Atlas: https://www2.gov.bc.ca/gov/content/data/geographic-data-services/topographic-data/freshwater

What is a Parcel Identifier (PID)? Where can I find my PID for the land?

PID (Parcel Identifier) is a unique nine-digit number used to identify titled parcels of land in BC. The PID can be found on a property tax assessment notice and on certain land title records.

You can find a property’s PID or legal description through:

- ParcelMap BC using geographic location, PID, civic address or other identifier : https://parcelmapbc.ltsa.ca/pmsspub/.
- BC Assessment’s Assessment Search (civic address required: https://www.bcassessment.ca/
- A tax assessment notice from BC Assessment
- Municipal tax notice
- Using the maps here where you can search by address: https://maps.ltsa.ca/

What is legal description?

The legal description of land can be found on the property tax notice.

What is certificate of title? Do I need it? When should I submit the certificate of title?

In British Columbia, a title certificate (officially called a State of Title Certificate) is an official, certified document from the Land Title and Survey Authority of BC (LTSA) that proves who legally owns a specific piece of real estate at a precise date and time. The title certificate can be submitted as part of this application (for both your land and any other affected land). It is recommended that you submit the title certificate if it is applicable to your application.

What is Mineral Tenure Number?

A mineral tenure number is a unique 6- or 7-digit identification code assigned to a registered mineral, placer, or coal claim. You can find more information here: https://www2.gov.bc.ca/gov/content/industry/mineral-exploration-mining/mineral-titles

What is Lands File Number?

A Crown land file number is a unique seven-digit code assigned by regional offices to identify a specific application, tenure, or disposition of public Crown land. You can find more information here: https://www2.gov.bc.ca/gov/content/industry/crown-land-water/crown-land/gator

What can I add for other Permits:

Include other permits like Land Act Tenure, Crown land file, forest road permit, Dam Safety authorization, development permit, or building permit. Any permit type that you have on your land can be added to this section.

Civic address or other location description of affected land:

If the civic address is unknown, provide another location description that clearly identifies the land, such as the legal description, PID, lot and plan number, nearest road, nearby landmark, GPS coordinates, or other sufficient location details.

Is the name of the owner required? How to find the name of owner of land that is affected by your works?

If you don't know the landowner's name, provide the information if known or indicate that it is unknown. You should make reasonable efforts to identify the owner before submitting your application, as this information may be required for processing. You can identify the landowner by checking a property tax notice, conducting a land title search, contacting the

local government or First Nation (if applicable), or asking the current occupant or property manager.

What is Metes and Bounds?

Metes and bounds is a legal description of land that defines its boundaries using distances, directions, and identifiable boundary markers, rather than a street address or lot number.

How do I find the coordinates of a location (like a well, land etc.)?

To find coordinates of a location:

- Open Google Maps on a computer that is connected to the internet.
- Find the location of your well or other feature.
- Using a mouse, right-click the location on the map.
- Select “What's here?”

At the bottom, you’ll see the coordinates of the location you selected. Use the “decimal degrees” e.g. Latitude 49.859522, Longitude -119.423391

Where do I find details about my well?

If your well is registered in the provincial Wells Database, you can look up the Well Tag Number and Depth of well using the BC Agriculture Water Calculator here: http://www.bcagriculturewatercalculator.ca/

You can also find other ways to locate your well here: https://apps.nrs.gov.bc.ca/gwells/

What is a Flowing Artesian Well?

The definition of a well under WSA includes: any casing, screen, drive shoe, packer, riser pipe, cap, valve, grout, liner and seal relating to a well. Well design may vary based on site specific conditions and professional consultation.

A well is artesian if the aquifer pressure raises the water column in the well casing above the aquifer level. A flowing artesian well is when the aquifer pressure forces the groundwater to rise in the well casing above the land surface naturally without using a pump. A flowing artesian well may flow on an intermittent or a continuous basis.

You can find more information here: https://www2.gov.bc.ca/assets/gov/environment/air-land-water/water/water-wells/flowing_artesian_wells.pdf

What is a well construction report? Where does one find it?

A well construction report is an official document created by a licensed driller. It details the drilling depth, soil and rock layers found, water yield, and casing details. In British Columbia, these records must be submitted within 90 days of finishing the work and can be searched online using the provincial Groundwater Wells and Aquifers Database (GWELLS) here: https://apps.nrs.gov.bc.ca/gwells/

What is a hydraulic connection?

"Hydraulic connection", for the purpose of water allocation and use, means the reasonable likelihood that pumping of groundwater from a well will eventually result in a change in the flow of a stream or spring or change in the level of a lake, pond, wetland that overlies or borders the aquifer, over a time period and to an extent that the decision maker must take into account in considering the environmental flow needs of the stream or whether the rights of other authorized users on the stream are likely to be detrimentally affected.

This definition reveals some inherent principles in determining hydraulic connection:

- The person determining likelihood of hydraulic connection is the decision maker;
- "Reasonable likelihood" is the test, a test that should meet a certain level of probability; this level of probability should, in turn, be based on evidence that directly links connection between the pumping well to the stream;
- "Change in the flow of a stream or spring or change in the level of a lake, pond or wetland" reflects the significance of the impact, as well as ability to detect the impact, and;
- "Eventually result" and "a time period" recognizes the often delayed-response of stream depletion (up to years or decades) from well pumping or stream recovery from cessation of pumping, and the relevance of this delayed response in water allocation and taking of action during a temporary period of water scarcity. "Eventually result" also implies considering the cumulative impact of pumping of all wells in the connected aquifer.

In the water allocation process, the information available to assess hydraulic connection is often from the information about the well, a technical assessment submitted by the applicant's professional (if an assessment is required), as well as other information, such as:

- geological mapping covering the area;
- well construction reports of nearby wells;
- available reports on studies and assessments for the aquifer;
- observation well monitoring, as well as

- staff knowledge of the hydrology and hydrogeology of the area, based on experience.

You can find more information here: https://a100.gov.bc.ca/pub/acat/documents/r50832/HydraulicConnectMW3_1474311684426_4310694949.pdf

Does creek water require a license for domestic purpose?

Yes, Creek always requires licence for domestic purpose as it is considered surface water. Only, ground water doesn't need a domestic licence.